

SENATE No. 1525

The Commonwealth of Massachusetts

PRESENTED BY:

James B. Eldridge

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to ensure safe medication administration.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>2/27/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>5/28/2025</i>

SENATE No. 1525

By Mr. Eldridge, a petition (accompanied by bill, Senate, No. 1525) of James B. Eldridge and Michael D. Brady for legislation to ensure safe medication administration. Public Health.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1452 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to ensure safe medication administration.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 7 of chapter 94C of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by inserting after subsection (h), the following new subsection:-

3 (i) Notwithstanding any general or special law to the contrary, only a dentist, nurse,
4 physician, podiatrist, perfusionist, optometrist or veterinarian licensed as a professional under
5 chapter 112 or any student enrolled in a course of study for said profession acting under the
6 supervision of said licensed person and in accordance with the law, may administer any
7 controlled substance in schedule II, III , IV, V or VI of Section 3 of chapter 94C. This subsection
8 shall not be construed to prohibit the following:

9 (1) self-administration;

10 (2) administration of epinephrine pens in an emergency;

11 (3) administration of controlled substances by emergency medical system personnel or

12 (4) administration of controlled substances by any ill, injured or infirm person's domestic
13 partner or a family member;

14 or

15 (5) administration of controlled substances in a long-term care facility by a medication
16 aide certified under section 72W1/2 of chapter 111.

17 For the purposes of this section, "self-administration" shall include the ability of any ill,
18 injured or infirm person who has sufficient understanding of their prescribed controlled
19 substances, the indications and contraindications for such controlled substance; a recollection of
20 the administration schedule for such controlled substance and an ability to communicate this
21 knowledge and the experienced effect of having taken a controlled substance, to supervise an
22 unlicensed person in the direct administration of such controlled substance to them.